

9:00 3	23CV411306	<i>Raymond Tesconi</i> <i>v.</i> <i>Dark Run Ventures, Inc., et al.</i>	Order on Defendant Tripathi's Motion to Expunge Lis Pendens See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
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Line 1

Case Name: *American Express National Bank*
v.
Christophe Juniel a.k.a. Christopher J. Juniel, et al.

Case No.: 25CV477825

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Christopher Juniel moves under Code of Civil Procedure Section 418.10 to quash service of Summons on the following grounds:

1. The Summons and Complaint were not properly served under California law.
2. The Court lacks personal jurisdiction under the terms of the governing agreement.

Notice of Motion (the “Motion”) at 1:22-28 (filed: Jan. 12, 2026).

The Motion came on for hearing on August 21, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On April 18, 2017, the parties entered into an agreement for a credit card. Defendant has a current outstanding balance of \$25,321.62. (Complaint at ¶¶1, 8, 10 & its Exs. A, B) (filed: Oct. 16, 2025). Plaintiff initiated this action on October 16, 2025, alleging a single cause of action for breach of contract. (*Id.*)

II. Legal Standard on Motion to Quash

A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her” that results from lack of proper service. (Code. Civ. Proc. § 418.10(a)(1). A defendant has 30 days after the service of the summons to file a responsive pleading. (Code. Civ. Proc. § 412.20(a)(3).) “Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (*AO Alfa-Bank v. Yakovlev* (2018) 21Cal.App.5th 189, 202; internal quotations marks and citation omitted.) To establish personal jurisdiction, compliance with statutory procedures for service of process is essential. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) Defendant’s knowledge